Introduction Clauses

It's very helpful to set out a clause (or clauses) at the very beginning of the agreement explaining what the agreement is, who it applies to, and when the terms are triggered.

Here's how Instagram does this. It notes that the terms are triggered when a user creates an account on the platform or uses the app, and it clearly states that the terms constitute an agreement between Instagram and the user:

Terms of Use

Welcome to Instagram!

These Terms of Use govern your use of Instagram and provide information about the Instagram Service, outlined below. When you create an Instagram account or use Instagram, you agree to these terms.

The Instagram Service is one of the Facebook Products, provided to you by Facebook, Inc. These Terms of Use therefore constitute an agreement between you and Facebook, Inc.

It's important to clarify who the agreement applies to since it's legally binding.

YouTube, for example, makes it clear that:

- Users must agree to the terms before using the service
- Anyone who uses their service is assumed to agree to the terms
- Some people are legally prohibited from entering into the agreement

2. Accepting the Terms

2.1 In order to use the Service, you must firstly agree to the Terms. You may not use the Service if you do not accept the Terms.

2.2 You can accept the Terms by simply using the Service. You understand and agree that YouTube will treat your use of the Service as acceptance of the Terms from that point onwards.

2.3 You may not use the Service and may not accept the Terms if (a) you are not of legal age to form a binding contract with YouTube, or (b) you are a person who is either barred or otherwise legally prohibited from receiving or using the Service under the laws of the country in which you are resident or from which you access or use the Service.

This clause is placed close to the beginning of the agreement and is part of the introductory clauses.

Who Can Use Your Platform

Although it's illegal to discriminate against people based on protected characteristics such as their gender, sexual orientation, or ethnicity, it is perfectly reasonable to put certain restrictions on who can use your website or app.

Instagram, for example, prohibits children under the age of 13 from creating accounts. It also bans convicted sex offenders.

Significantly, Instagram also bans users from returning to the site if their profile is deleted or blocked. The clause is simple but effective to include in its terms.

Who Can Use Instagram. We want our Service to be as open and inclusive as possible, but we also want it to be safe, secure, and in accordance with the law. So, we need you to commit to a few restrictions in order to be part of the Instagram community.

- You must be at least 13 years old.
- You must not be prohibited from receiving any aspect of our Service under applicable laws or engaging in payments related Services if you are on an applicable denied party listing.
- We must not have previously disabled your account for violation of law or any of our policies.
- You must not be a convicted sex offender.

Helpfully, Instagram establishes **why** the restrictions exist - they want to comply with the law and promote a safe, inclusive platform. We recommend including **reasons** like these for your own clauses.

Unacceptable Behavior Clause

These clauses address what behavior is unacceptable on your website. They are an opportunity to set out the rules that you expect users to abide by, and what the consequences will be if the user violates these rules.

It's helpful to set out specific examples of behavior that violates your site rules.

The Oath Terms of Service sets out the behavior that it deems unacceptable. It uses broad language such as "Make available any content...that is otherwise objectionable" to avoid restricting content violations to, for example, sexually explicit or vulgar content:

d. *Member Conduct.* You agree not to use the Services to:

i. obtain or attempt to obtain unauthorized access to the Services or to Oath's servers, systems, network, or data;

ii. make available any content that is harmful to children, threatening, abusive, harassing, tortious, defamatory, vulgar, obscene, libelous, invasive of another's privacy, hateful, or racially, ethnically, or otherwise objectionable;

iii. violate any applicable laws or regulations;

iv. impersonate any person or entity; or forge or manipulate headers or identifiers to disguise the origin of any content transmitted through the Service;

v. make available any content that you do not have the right to make available or that infringes any patent, trademark, trade secret, copyright or other proprietary rights of any person or entity;

vi. post content containing advertisements or other commercial solicitations without our prior written permission;

vii. make available viruses or any other computer code, files, programs or content designed to interrupt, destroy or limit the functionality of the Services or affect other users; or

viii. interfere with or disrupt the Services or servers, systems or networks connected to the Services in any way.

It's very important to use **broad language** which permits you to take action on a user's account without worrying about repercussions.

Termination Clause

Just as you should list examples of unacceptable behavior, you should explain what **you're entitled to do** if a user violates the agreement.

Again, YouTube does this very effectively.

The below clause explains that YouTube may or may not **remove content** that violates its rules, and it may or may not **ban the offending user**.

7.8 On becoming aware of any potential violation of these Terms, YouTube reserves the right (but shall have no obligation) to decide whether Content complies with the content requirements set out in these Terms and may remove such Content and/or terminate a User's access for uploading Content which is in violation of these Terms at any time, without prior notice and at its sole discretion.

This gives YouTube scope to act quickly to terminate the account without giving the offending user the chance to respond. Clearly, a broadly worded clause like this one benefits you as opposed to the user, and we recommend including a clause of similar wording in your Terms agreement.

Jurisdiction Clause

You should clarify what national law you wish to have **govern the agreement** between you and the users. This is helpful because you **can choose your local courts and laws** where your business is based.

Reddit, for example, notes that all users consent to being governed by California law if they use the site:

13. Governing Law and Venue

We want you to enjoy Reddit, so if you have an issue or dispute, you agree to raise it and try to resolve it with us informally. You can contact us with feedback and concerns here or by emailing us at contact@reddit.com.

Except for the government entities listed below: any claims arising out of or relating to these Terms or the Services will be governed by the laws of California, other than its conflict of laws rules; all disputes related to these Terms or the Services will be brought solely in the federal or state courts located in San Francisco, California; and you consent to personal jurisdiction in these courts.

Setting out the jurisdiction in the Terms and Conditions clarifies which courts are responsible for managing serious disputes between parties should they arise. It's important that both you and the user understand where you are entitled to sue.

Limits on Liability Clause

A limitation of liability clause lets you legally mitigate your responsibility for things that may go wrong on your website.

Facebook, for example, explains that it will exercise reasonable care and skill in delivering users the services.

3. Limits on liability

We work hard to provide the best Products we can and to specify clear guidelines for everyone who uses them. Our Products, however, are provided "as is," and we make no guarantees that they always will be safe, secure, or error-free, or that they will function without disruptions, delays, or imperfections. To the extent permitted by law, we also DISCLAIM ALL WARRANTIES, WHETHER EXPRESS OR IMPLIED, INCLUDING THE IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. We do not control or direct what people and others do or say, and we are not responsible for their actions or conduct (whether online or offline) or any content they share (including offensive, inappropriate, obscene, unlawful, and other objectionable content).

We cannot predict when issues might arise with our Products. Accordingly, our liability shall be limited to the fullest extent permitted by applicable law, and under no circumstance will we be liable to you for any lost profits, revenues, information, or data, or consequential, special, indirect, exemplary, punitive, or incidental damages arising out of or related to these Terms or the Facebook Products, even if we have been advised of the possibility of such damages. Our aggregate liability arising out of or relating to these Terms or the Facebook Products will not exceed the greater of $100 or the amount you have paid us in the past twelve months.

Intellectual Property Clause

You should make it clear that **you retain all copyright** over branding, logos, and other significant business features such as domain names.

In the example below, Twitter explains that while users have full rights to use the platform, they have no right to steal its trademarks or its unique branding. It also clarifies that Twitter doesn't owe a user any credit if Twitter acts on that user's improvement suggestions or feedback.

Your License to Use the Services

Twitter gives you a personal, worldwide, royalty-free, non-assignable and non-exclusive license to use the software provided to you as part of the Services. This license has the sole purpose of enabling you to use and enjoy the benefit of the Services as provided by Twitter, in the manner permitted by these Terms.

The Services are protected by copyright, trademark, and other laws of both the United States and foreign countries. Nothing in the Terms gives you a right to use the Twitter name or any of the Twitter trademarks, logos, domain names, and other distinctive brand features. All right, title, and interest in and to the Services (excluding Content provided by users) are and will remain the exclusive property of Twitter and its licensors. Any feedback, comments, or suggestions you may provide regarding Twitter, or the Services is entirely voluntary and we will be free to use such feedback, comments or suggestions as we see fit and without any obligation to you.

Warranty Disclaimer Clause

You should make it clear that you **aren't financially responsible** for **certain losses** incurred while users engage with your platform or service, or use your products if you have an ecommerce store.

The exact information in your warranty clause will differ depending on what industry you're in and what terms you actually want to put forth, but a lot of warranty clauses do contain the same common language. Typically, this will be "as is" statements that you're likely familiar with seeing.

Here's an example from Snap that has the typical language and all-caps structure you'll usually see in these types of clauses:

THE SERVICES ARE PROVIDED "AS IS" AND "AS AVAILABLE" AND TO THE EXTENT PERMITTED BY LAW WITHOUT WARRANTIES OF ANY KIND, EITHER EXPRESS OR IMPLIED, INCLUDING, BUT NOT LIMITED TO, IMPLIED WARRANTIES OF MERCHANTABILITY, FITNESS FOR A PARTICULAR PURPOSE, TITLE, AND NON-INFRINGEMENT. IN ADDITION, WHILE SNAP INC. ATTEMPTS TO PROVIDE A GOOD USER EXPERIENCE, WE DO NOT REPRESENT OR WARRANT THAT: (A) THE SERVICES WILL ALWAYS BE SECURE, ERROR-FREE, OR TIMELY; (B) THE SERVICES WILL ALWAYS FUNCTION WITHOUT DELAYS, DISRUPTIONS, OR IMPERFECTIONS; OR (C) THAT ANY CONTENT, USER CONTENT, OR INFORMATION YOU OBTAIN ON OR THROUGH THE SERVICES WILL BE TIMELY OR ACCURATE.

Contact Information Clause

This clause ishould outline who owns and maintains the website (usually, this is your business), and how to contact you.

Here's how Snap does this and even includes a link to an online contact form to make it even easier for users to get in touch:

Contact us

Snap Group Limited welcomes comments, questions, concerns, or suggestions. You can contact us or get support by using this online form.

The company responsible for the Services outside the United States is called Snap Group Limited and is located in the United Kingdom at 7-11 Lexington Street, London W1F 9AF, United Kingdom. Registered company number: 09763672. Authorised representative: David Lewis, Director. VAT ID: GB 237218316.

Payment Details Clause

If you run a business which involves consumers signing up for paid services, such as Netflix, you should outline how payment works.

Netflix outlines the terms of membership to its platform and when payment is taken. It also clarifies that, to use the services, users must supply valid payment information and keep this information updated.

1. **Membership**

1.1. Your Netflix membership will continue and automatically renew until terminated. To use the Netflix service you must have Internet access and a Netflix ready device and provide us with one or more Payment Methods. "Payment Method" means a current, valid, accepted method of payment, as may be updated from time to time and which may include payment through your account with a third party. You must cancel your membership before it renews in order to avoid billing of the membership fees for the next billing cycle to your Payment Method (see "Cancellation" below).

If you're running a subscription service, it's worth reading through the entire Netflix Terms of Service for some good examples of clauses as it includes a number of them that are dedicated to free trials, payment cycles, and cancellation options.

Third Party Content Clause

You shouldn't be liable for third party content available through your site, such as links placed within your site that lead elsewhere.

In the first example, Arcadia Group explains that it has no control over what happens when you click links leading to partner and third party websites:

> Certain (hypertext) links in this website will lead to websites which are hosted by our partners. When you click on any of these links you will leave this website and we have no control over, and will accept no responsibility or liability in respect of, the material on any website which is not under our control. You should be aware that the terms and conditions and privacy policies of such third party websites may be different from those applicable to this website.

In this second example, Reddit highlights that you click on third party links and use products supplied by Reddit partners at your own risk:

> **5. Third-Party Content, Advertisements and Promotions**
>
> The Services may contain links to third-party websites, products, or services, which may be posted by advertisers, our affiliates, our partners, or other users ("**Third-Party Content**"). Third-Party Content is not under our control, and we are not responsible for any of their websites, products, or services. Your use of Third-Party Content is at your own risk and you should make any investigation you feel necessary before proceeding with any transaction in connection with such Third-Party Content.
>
> The Services may also contain sponsored Third-Party Content or advertisements. The type, degree, and targeting of advertisements are subject to change, and you acknowledge and agree that we may place advertisements in connection with the display of any Content or information on the Services, including Your Content.

Since you can't control third party content, transferring the risk back to the user is crucial.

Other Relevant Clauses

Your Terms and Conditions agreement is personal to your business. You should include clauses that are relevant to your business type that might not be standard across industries.

WebMD, for example, rightfully specifies that the content on the platform isn't medical advice. This prevents users from relying on the content and suing WebMD if the advice is medically inaccurate for them:

The Site Does Not Provide Medical Advice

The contents of the WebMD Site, such as text, graphics, images, and other materials created by WebMD or obtained from WebMD's licensors, and other materials contained on the WebMD Site (collectively, "Content") are for informational purposes only. The Content is not intended to be a substitute for professional medical advice, diagnosis, or treatment. Always seek the advice of your physician or other qualified health provider with any questions you may have regarding a medical condition. Never disregard professional medical advice or delay in seeking it because of something you have read on the WebMD Site!

Arcadia Group specifies its gift card policy, because it sells gift cards and these products are not always available:

PURCHASE OF GIFT VOUCHERS AND GIFT CARDS

When you place an order on our website we will email you an acknowledgement. Our acceptance of your order does not take place until dispatch of the order, at which point the purchase contract will be made and you will be charged.

If there are any problems with your order we shall contact you. We reserve the right to reject any offer to purchase by you at any time. Gift vouchers and gift cards are subject to availability.

Now that you better understand which clauses to include in your Terms and Conditions, let's look at how you should display your agreement.